1. He/she should not be a member of either House of Parliament or a House of the state legislature. If any such person is elected as the Vice-President, he/she is deemed to have vacated the seat in that House on the date on which he/she enters upon the office as Vice-President.

2. He/she should not hold any other office of profit.

TERM AND VACANCY

 **Term of Office**

The Vice-President holds office for a term of five years from the date on which he/she enters upon his/her office. However, he/she can resign from his/her office at any time by addressing the resignation letter to the President. He/she can also be removed from the office before completion of his/her term. A formal impeachment is not required for his/her removal. He/she can be removed by a resolution passed by a majority of all the then members of the Rajya Sabha and agreed to by the Lok Sabha. This means that this resolution should be passed in the Rajya Sabha by an effective majority and in the Lok Sabha by a simple majority. Further, this resolution can be introduced only in the Rajya Sabha and not in the Lok Sabha. But, no such resolution can be moved unless at least 14 days' advance notice has been given. Notably, no ground has been mentioned in the Constitution for his/her removal.

The Vice-President can hold office beyond his/her term of five years until his/her successor assumes charge. He/she is also eligible for re-election to that office. He/she may be elected for any number of terms.[4]

 **Vacancy in Office**

A vacancy in the Vice-President's office can occur in any of the following ways:

1. On the expiry of his/her tenure of five years

2. By his/her resignation

3. On his/her removal

4. By his/her death[5]

5. Otherwise, for example, when he/she becomes disqualified to hold office or when his/her election is declared void.

When the vacancy is going to be caused by the expiration of the term of the sitting vice-president, an election to fill the vacancy must be held before the expiration of the term.

If the office falls vacant by resignation, removal, death or otherwise, then election to fill the vacancy should be held as soon as possible after the occurrence of the vacancy. The newly-elected vice-president remains in office for a full term of five years from the date he/she assumes charge of his/her office.

POWERS AND FUNCTIONS

The functions of the Vice-President are two-fold: